

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MINNESOTA**

JOSEPH KIRCHNER,

Plaintiff,

v.

KEITH ELLISON, in his official
capacity as Attorney General of the
State of Minnesota,

Defendant.

Case No. 0:26-cv-02594-LMP-DJF

**PLAINTIFF'S NOTICE OF MOTION AND
MOTION TO ALTER OR AMEND THE
JUDGMENT UNDER FED. R. CIV. P. 59(e)**

NOTICE OF MOTION

TO: The Administrator of the Above-Named Court, and Defendant Keith Ellison,
through his counsel of record, Jamal Zayed, Assistant Attorney General, 445 Minnesota Street,
Suite 600, St. Paul, Minnesota 55101-2125.

PLEASE TAKE NOTICE that Plaintiff Joseph Kirchner, proceeding pro se, hereby
moves the Court under Federal Rule of Civil Procedure 59(e) to alter or amend the Judgment
entered August 20, 2026 (ECF No. 28). This is a post-judgment motion under Local Rule 7.1(e).
Pursuant to that rule, Plaintiff will contact the courtroom deputy for the Honorable Laura M.
Provinzino upon filing to obtain a briefing schedule. Defendant's underlying motion was
decided on the papers without a hearing (ECF No. 25), and Plaintiff submits that this motion may
be decided in the same manner.

MOTION

In support of this motion, Plaintiff states as follows:

The Court entered its Order Granting Motion To Dismiss (ECF No. 27) and the Judgment
in a Civil Case (ECF No. 28) on August 20, 2026. This motion is filed within twenty-eight days
of entry of the Judgment, as Rule 59(e) requires.

Rule 59(e) permits the Court to correct manifest errors of law or fact in the period immediately following judgment. This motion identifies four such errors, each set out in the accompanying memorandum with the sentence of the Order in which it appears and the record text that sentence cites or omits. The motion presents no new evidence and no new theory of relief, and does not re-argue the opposition to the motion to dismiss.

First, the Order's standing holding describes the Complaint as a demand that the Attorney General investigate and prosecute third parties, citing Complaint ¶ 96 and ¶¶ 19–21 (ECF No. 27 at 5, 7). Paragraph 96 expressly preserves "the proper exercise of prosecutorial discretion" as to any outcome, and ¶¶ 19–21 plead that the February 26, 2026 letter is false. The claim pleaded is that Plaintiff's own petition was disposed of by a false statement of the office's statutory authority (Compl. ¶¶ 16–21, 68–71), which *Linda R.S. v. Richard D.*, 410 U.S. 614 (1973), and *Parkhurst v. Tabor*, 569 F.3d 861 (8th Cir. 2009), do not address.

Second, the Order holds that any federal injury "was complete at the time Kirchner received the letter" (ECF No. 27 at 6) without addressing Complaint ¶¶ 22, 23, 26 and 78, which plead a present, continuing official disclaimer maintained across administrations, or the prospective relief directed at it (Compl. ¶¶ 95–97), all of which the opposition briefed as the ongoing violation (ECF No. 15 at 22–23 & n.4).

Third, the Order assumes "even if Kirchner is correct" that the office possesses the authority the letter disclaimed (ECF No. 27 at 5). On the injury pleaded, that assumption establishes the injury rather than defeating it, and the question assumed is a question of law that the statutes (Minn. Stat. §§ 8.31, 8.32, 299C.061, subd. 4(c)) and Defendant's own briefing (ECF No. 11 at 8; ECF No. 16 at 5) answer.

Fourth, both grounds of dismissal are jurisdictional, and a jurisdictional dismissal must be without prejudice. *County of Mille Lacs v. Benjamin*, 361 F.3d 460, 464–65 (8th Cir. 2004); *Dalton v. NPC Int'l, Inc.*, 932 F.3d 693, 696 (8th Cir. 2019). The Order and the Judgment state only that the Complaint "is DISMISSED." At a minimum the Judgment should be altered to state that the dismissal is without prejudice.

In the alternative, Plaintiff renews his request for leave to amend (ECF No. 15 at 32–33) and identifies in the memorandum the specific amendments he would make, answering the ground stated at ECF No. 27 at 8 n.2.

Pursuant to Local Rule 7.1(a), Plaintiff conferred with Defendant's counsel regarding this motion by email on September 14, 2026. Defendant's position is set forth in the accompanying meet-and-confer statement.

This motion is based on this notice of motion and motion, the accompanying memorandum of law, the meet-and-confer statement, the proposed order, and all files, records, and proceedings herein.

RELIEF REQUESTED

Plaintiff respectfully requests that the Court alter or amend the Judgment (ECF No. 28) by:

(a) vacating the dismissal and denying Defendant's Motion to Dismiss (ECF No. 9) as to Counts I and II, with Counts III and IV proceeding as declaratory relief ancillary to those counts; or, if the Court declines that relief,

(b) altering the Judgment to provide that the Complaint is dismissed without prejudice; and

(c) granting Plaintiff leave to file an amended complaint within twenty-one days of the Court's order, as set out in Part III.E of the accompanying memorandum.

Respectfully submitted,

/s/ Joseph Kirchner

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Plaintiff, Pro Se
Dated: September 16, 2026

CERTIFICATE OF SERVICE

I hereby certify that on September 16, 2026, I caused the foregoing **Plaintiff's Notice of Motion and Motion to Alter or Amend the Judgment Under Fed. R. Civ. P. 59(e)**, together with the accompanying memorandum of law, meet-and-confer statement, certificate of compliance, and proposed order, to be filed through the Court's CM/ECF system, which will send notice of electronic filing to all counsel of record.

/s/ Joseph Kirchner

Joseph Kirchner
Plaintiff, Pro Se